

26STCV14123 26STCV14123

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-01

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Case Number: 26STCV14123 Hearing Date: September 1, 2026 Dept: 512

HEARING DATE: Tues., September 1, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Green

Farms California, LLC v. 649 South COMP.

FILED: 05-04-26

Olive

Tenant LLC, et al.

CASE NUMBER: 26STCV14123

NOTICE: NO

PROCEEDINGS: DEMURRER

TO THE COMPLAINT

MOVING PARTY: Defendant

Brandon Laterveer

RESP. PARTY: None

DEMURRER

(CCP §§ 430.10, et seq.)

TENTATIVE RULING:

Defendant Brandon Laterveer's Demurrer

to Plaintiff's Complaint is CONTINUED to Monday, October 5, 2026, at 9:00 a.m.
in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the
next scheduled hearing, Defendant is to file and serve proper proof of service
of the Demurrer and Notice of Hearing on Plaintiff.

Moving party is ordered to give
notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC,
rule 3.1300) NO

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☐
16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None
filed as of August 28, 2026 ☐ Late ☒
None

REPLY: None
filed as of August 28, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On May 4, 2026, Plaintiff Green Farms
California, LLC dba Worldwide Produce ("Plaintiff") filed the instant action
against Defendants 649 South Olive Tenant LLC dba 649 South Olive Tenant dba
Nomad LA ("649 South Olive Tenant") and Brandon Laterveer ("Laterveer")
("Defendants") and Does 1-20, alleging Breach of Contract and Common Counts
causes of action.

On July 8, 2026, 649 South Olive
Tenant was dismissed.

On August 10, 2026, Laterveer filed
the instant Demurrer to Plaintiff's Complaint (the "Demurrer") and request for
judicial notice.

On August 24, 2026, Laterveer filed a
Notice of Non-Opposition to the Demurrer.

No Opposition has been filed.

IV.
Procedural
Issues

As an initial matter, the Court notes
the Demurrer was filed and electronically served on Plaintiff less than 16
court days and two court days prior to the instant hearing. (See Code Civ.
Proc., §§ 1005, 1010.6; 8/10/26 Proof of Service.) Thus, the Demurrer is
untimely filed and served.

The Court may not rule on the Demurrer
absent proper service and notice of hearing.

V.
Conclusion
& Order

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